

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nick Kuczek	Team: Squad #08	CCRB Case #: 202308544	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 09/09/2023 10:26 PM, Sunday, 09/10/2023 12:39 AM	Location of Incident: Outside of 178 Ludlow Street ; Southeast corner of Ludlow Street and East Houston Street	18 Mo. SOL 3/9/2025	Precinct: 07		
Date/Time CV Reported Sun, 09/10/2023 1:48 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 09/10/2023 1:48 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Jonathan Bourne	02430	958321	INT CIS
2. DT3 Estharlin Lopez	03157	959766	INT CIS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Rommel Javonero	02179	943399	007 PCT
2. PO Kenny Liriano	20964	967961	007 PCT
3. PO Andres Cadavid	25676	969559	032 PCT
4. PO Corey Telfer	03565	976432	MTN PCT
5. PO Vanessa Gutierrez	12853	971463	013 PCT
6. SGT Khaatim Harrison	01054	947919	007 PCT
7. DT3 Corey Graves	02848	956696	INT CIS
8. DT3 Yurantz Assade	04516	939886	INT CIS

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Estharlin Lopez	Force: On September 09, 2023, at the intersection of Ludlow Street and East Houston Street in Manhattan, Detective Estharlin Lopez used physical force against § 87(2)(b)	
B . DT3 Jonathan Bourne	Force: On September 10, 2023, at 178 Ludlow Street in Manhattan, Detective Jonathan Bourne used physical force against § 87(2)(b)	
C . DT3 Jonathan Bourne	Abuse: On September 10, 2023, at 178 Ludlow Street in Manhattan, Detective Jonathan Bourne refused to provide his name to § 87(2)(b)	
D . DT3 Jonathan Bourne	Abuse: On September 10, 2023, at 178 Ludlow Street in Manhattan, Detective Jonathan Bourne refused to provide his shield number to § 87(2)(b)	
E . DT3 Jonathan Bourne	Abuse: On September 10, 2023, at 178 Ludlow Street in Manhattan, Detective Jonathan Bourne threatened to arrest § 87(2)(b)	

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via call processing system on September 10, 2023.

On September 09, 2023, at approximately 10:26 PM, Detective Estharlin Lopez and Detective Corey Graves, both of Criminal Intelligence Section, worked at a pop-up concert at the Sweet Chick restaurant, located at 178 Ludlow Street in Manhattan. After Ludlow Street was closed to pedestrian traffic at the intersection of East Houston Street, several officers escorted § 87(2)(b) out of a restricted area on Ludlow Street after he refused to leave. Det. Lopez punched § 87(2)(b) in the head several times before arresting him and removing him to the 7th Precinct stationhouse (**Allegation A – Force:** § 87(2)(g)).

On September 10, 2023, at approximately 12:40 AM, after the conclusion of the pop-up concert at the Sweet Chick restaurant, § 87(2)(b) stood on the sidewalk outside the restaurant. Detective Jonathan Bourne, of Criminal Intelligence Section, punched § 87(2)(b) in the face after she bumped into him from behind (**Allegation B – Force:** § 87(2)(g)). § 87(2)(b) followed Det. Bourne and repeatedly requested his name and his shield number, which he refused to provide. Det. Bourne then threatened to arrest § 87(2)(b) (**Allegations C, D, and E – Abuse of Authority:** § 87(2)(g)).

§ 87(2)(b) was not arrested or summonsed during this incident.

§ 87(2)(b) was arrested for resisting arrest, obstruction of governmental administration, and disorderly conduct as a result of this incident (Board Review 01).

The investigation obtained personal cellphone video capturing the physical force used by Det. Lopez and Det. Bourne, Det. Bourne's refusals to provide his name and shield number, and Det. Bourne's threats of arrest during this incident (Board Review 02, 03, 04, 05).

The investigation obtained body-worn camera (BWC) footage from Sergeant Rommel Javonero, Sergeant Khaatim Harrison, and Police Officer Kenny Liriano, all of the 7th Precinct, from Police Officer Andres Cadavid, of the 32nd Precinct, from Police Officer Vanessa Gutierrez, of the 13th Precinct, and from Police Officer Corey Telfer, of Midtown North Precinct. BWC footage did not capture the alleged misconduct during this incident and was not pertinent to the investigation (Board Review 06, 07).

Findings and Recommendations

Allegation (B) Force: On September 10, 2023, at 178 Ludlow Street in Manhattan, Detective Jonathan Bourne used physical force against § 87(2)(b).

Allegation (C) Abuse of Authority: On September 10, 2023, at 178 Ludlow Street in Manhattan, Detective Jonathan Bourne refused to provide his name to § 87(2)(b).

Allegation (D) Abuse of Authority: On September 10, 2023, at 178 Ludlow Street in Manhattan, Detective Jonathan Bourne refused to provide his shield number to § 87(2)(b).

Allegation (E) Abuse of Authority: On September 10, 2023, at 178 Ludlow Street in Manhattan, Detective Jonathan Bourne threatened to arrest § 87(2)(b).

§ 87(2)(b) provided a statement to the CCRB on September 20, 2023. On September 9, 2023, at approximately 11:00 PM, she and her friend, § 87(2)(b) arrived at the Sweet Chick

restaurant, located at 178 Ludlow Street in Manhattan, for a free pop-up concert by the recording artist Quavo. § 87(2)(b) stood on the sidewalk in front of the restaurant with approximately 100 other people and observed the performance through the open doors and windows of the restaurant.

At approximately 12:39 AM, on September 10, 2023, the performance concluded, and Quavo exited the restaurant and walked to a vehicle parked on the east side of Ludlow Street in front of The Ludlow Hotel, located at 180 Ludlow Street. § 87(2)(b) walked to and stood next to Quavo's vehicle. Three police officers all repeatedly told the concert goers to back up and to allow Quavo space to get into his vehicle. As Quavo entered the vehicle, concert goers behind § 87(2)(b) began pushing forward to get closer to the vehicle. Det. Bourne stood in front of § 87(2)(b) with his back turned to her. Someone behind § 87(2)(b) bumped into her, causing her to stumble forward and unintentionally bump into Det. Bourne's back and shoulder area. The physical contact with Det. Bourne by § 87(2)(b) was minimal and he did not move as a result of it. Det. Bourne immediately turned to face § 87(2)(b) made eye contact with her, did not say anything, and within a second of § 87(2)(b) incidental physical contact, Det. Bourne punched § 87(2)(b) in her mouth. § 87(2)(b) was not doing anything with her hands prior to Det. Bourne punching her, and just stood with her cellphone in her hand.

Det. Bourne immediately began walking away from § 87(2)(b) walking north on the east sidewalk of Ludlow Street. § 87(2)(b) walked approximately two feet behind Det. Bourne, video recording on her cellphone, and asked him why he punched her, to which he stated that he did not. § 87(2)(b) then asked Det. Bourne for his name and shield number, which he did not provide. Det. Bourne then told § 87(2)(b) that she was going to get locked up twice. § 87(2)(b) asked Det. Bourne for his information, referring to his name and shield number, several more times, with Det. Bourne continuously refusing to provide it. He then entered an unmarked police vehicle and left the scene.

§ 87(2)(b) sustained a laceration and swelling to her lower lip, headache, and general mouth and teeth pain as a result of being punched. Several hours after this incident § 87(2)(b) was treated at § 87(2)(b) where a CT scan was done of her head, and she received Tylenol. § 87(2)(b) did not receive any diagnosis. § 87(2)(b) visited her dentist where she received anesthesia and an X-ray of her mouth and face, and it was determined that she did not have any facial fractures. § 87(2)(b) was still suffering from headache and mouth and teeth sensitivity as a result of this incident at the time of her CCRB interview.

An independent witness, whom § 87(2)(b) did not know, identified to § 87(2)(b) as § 87(2)(b) witnessed the physical force by Det. Bourne, captured it on cellphone video during an Instagram Live video, and provided his cellphone number to § 87(2)(b) for the purpose of giving a witness statement. Another independent witness whom § 87(2)(b) did not know, identified to § 87(2)(b) as § 87(2)(b) also witnessed the physical force by Det. Bourne and provided his cellphone number to § 87(2)(b) for the purpose of giving a witness statement (Board Review 08).

§ 87(2)(b) provided a statement at the CCRB on October 12, 2023, and his statement was consistent with that of § 87(2)(b) in that Det. Bourne denied punching § 87(2)(b) when confronted by her and continuously refused to identify himself to § 87(2)(b) after she requested his identifying information numerous times. Det. Bourne walked away from § 87(2)(b) and approached a police vehicle at the intersection of Ludlow Street and East Houston Street, and § 87(2)(b) followed him and stood approximately two feet from him at the police vehicle. Det. Bourne told § 87(2)(b) that she needed to get away from his vehicle or she would be arrested.

§ 87(2)(b) was separated from § 87(2)(b) at the time that Det. Bourne punched her in the face and he therefore did not witness the physical force (Board Review 09).

§ 87(2)(b) provided a statement to the CCRB via telephone on December 06, 2023. He stated that on September 10, 2023, at approximately 12:39 AM, he stood on the sidewalk next to § 87(2)(b) whom he did not know, in front of the Sweet Chick restaurant. § 87(2)(b) observed Det. Bourne standing next to Quavo's vehicle as Quavo exited the restaurant and entered the vehicle. The sidewalk was "full of people" and Det. Bourne and several other officers pushed concert goers from the street back onto the sidewalk where § 87(2)(b) and § 87(2)(b) stood. Det. Bourne and several other officers continued pushing people from the street to the sidewalk and as they did so, got increasingly closer to § 87(2)(b) and § 87(2)(b).

Det. Bourne now stood directly in front of § 87(2)(b) with his back turned to her, facing Quavo's vehicle, and he turned and faced her. Det. Bourne looked at § 87(2)(b) for approximately three to five seconds and then punched § 87(2)(b) a single time in her upper lip and nose. § 87(2)(b) did not see § 87(2)(b) or any other individual make any physical contact with Det. Bourne prior to him punching § 87(2)(b). § 87(2)(b) stood approximately three to five feet from § 87(2)(b) when Det. Bourne punched her. Det. Bourne did not say anything to § 87(2)(b) prior to punching her and she did not say anything to him.

Det. Bourne began walking north on Ludlow Street towards East Houston Street. § 87(2)(b) walked directly next to Det. Bourne, while § 87(2)(b) walked a few feet behind them. § 87(2)(b) began video recording on his cellphone and § 87(2)(b) asked Det. Bourne for his "information" approximately five times. Det. Bourne did not provide his name, shield number, or any identifying information to § 87(2)(b). § 87(2)(b) did not hear Det. Bourne threaten to arrest § 87(2)(b). After the incident, § 87(2)(b) provided § 87(2)(b) with his cellphone number for the purpose of him providing a witness statement regarding the incident (Board Review 10).

The investigation was unable to establish contact with § 87(2)(b) and therefore was unable to obtain a statement from him.

The Instagram Live personal cellphone video recorded by § 87(2)(b) captured the physical force used by Det. Bourne during this incident. The video begins with Det. Bourne and several other officers pushing individuals onto the sidewalk. At 00:02, § 87(2)(b) is briefly seen from behind and at 00:03, Det. Bourne is seen pushing an individual before walking out of frame to the right, towards § 87(2)(b). At 00:09, the camera turns to Det. Bourne who stands facing Quavo's vehicle in front of § 87(2)(b) with his back turned to her. From 00:11 to 00:14, frame-by-frame (pause video and repeatedly press the "E" key), Det. Bourne turns his body to the left, faces § 87(2)(b) who is in frame at 00:11 before going out of frame to the right, and throws a single right-handed punch out of frame to the right. § 87(2)(b) points at Det. Bourne and states, "That's some bullshit. Your man popped her," and Det. Bourne begins walking north on Ludlow Street (Board Review 02).

§ 87(2)(b) personal cellphone video captured § 87(2)(b) various requests for Det. Bourne's identifying information and Det. Bourne's threats to arrest § 87(2)(b) during this incident. The video begins with § 87(2)(b) walking within several feet behind Det. Bourne and stating, "Give me your information," with Det. Bourne turning his head to the left and stating, "You're going to get locked up." At 00:03, § 87(2)(b) states, "I need your badge number," and Det. Bourne again states, "You're going to get locked up." At 00:08, Det. Bourne stops, turns to his right, and tells § 87(2)(b) to back up, and § 87(2)(b) states, "I need your information." At 00:11, § 87(2)(b) states, "You punched me in my mouth," and Det. Bourne states, "No I did

not.” § 87(2)(b) states, “Yes you did,” and at 00:14, states, “Give me your information. That was so fucked up of you.” Det. Bourne tells § 87(2)(b) to back up and at 00:17, gets into the driver seat of a police vehicle. At 00:18, § 87(2)(b) states, “Can I please have your information,” and Det. Bourne tells § 87(2)(b) to back up from his police vehicle. At 00:23, § 87(2)(b) again tells Det. Bourne that he punched her in her mouth and repeatedly requests for Det. Bourne’s shield number, with Det. Bourne continuously refusing before closing the police vehicle door (Board Review 03).

§ 87(2)(b) personal cellphone video captured § 87(2)(b) approach of Det. Bourne after he punched her. The video begins with § 87(2)(b) walking several feet behind § 87(2)(b) and § 87(2)(b) who walk north on Ludlow Street towards East Houston Street, following Det. Bourne. At 00:05, § 87(2)(b) tells § 87(2)(b) that Det. Bourne punched her in her mouth and § 87(2)(b) states, “I know he did, but chill. I don’t want to see you get in trouble. I saw it but it’s going to be worse. I don’t want to see it get worse.” § 87(2)(b) continues walking directly behind Det. Bourne, and at 00:20, § 87(2)(b) states, “Yeah get his ID because he a bitch. He put his hands on you. I saw that shit.” § 87(2)(b) and Det. Bourne cross Ludlow Street at the intersection of East Houston Street with the distance between them and § 87(2)(b) increasing, and at 00:39, § 87(2)(b) states, “He punched her right in her mouth and her nose. That shit was fucked the hell up, yo,” (Board Review 04).

Det. Bourne was interviewed at the CCRB on March 07, 2024. On the night of September 10, 2023, Det. Bourne and Detective Yurantz Assade, of Criminal Intelligence Section, responded to a pop-up concert by the performing artist, Quavo, at the Sweet Chick Restaurant, located at 178 Ludlow Street in Manhattan. Det. Bourne and Det. Assade did not receive specific instructions other than to conduct general crowd control and to provide additional police presence for the safety of the performing artist.

Upon arrival on scene, vehicle traffic was blocked off at the intersection of Ludlow Street and East Houston Street, and there were approximately 20 members of service at the intersection, while approximately 400 to 500 concert goers stood on the sidewalk and street in front of the Sweet Chick restaurant. Quavo performed inside of Sweet Chick with the doors and windows of the establishment open, and Det. Bourne walked around the sidewalk and street in the vicinity of the restaurant, surveilling for any potential threats to Quavo.

At approximately 12:39 AM, Quavo concluded his performance, exited the Sweet Chick restaurant, and began walking to his personal vehicle, parked two to three businesses north of the Sweet Chick restaurant on Ludlow Street. Quavo walked with approximately four members of his private security team, and Det. Bourne stood next to Quavo, approximately three to five feet away. Quavo reached his vehicle but did not immediately enter the vehicle, instead he stood on the step-up bar of the vehicle and allowed fans to take pictures of him. The crowd of concert goers surrounded Quavo and his vehicle within approximately three feet, and the crowd began to push closer to Quavo, but did not ever make contact with Quavo. Det. Bourne repeatedly told the crowd to back up and pushed concert goers back, to create distance from them and Quavo, and to create a lane for Quavo’s vehicle to leave the scene. Quavo entered the vehicle and Det. Bourne continued pushing individuals who stood in front of Quavo’s vehicle away and cleared a path for the vehicle to leave. Det. Bourne turned and faced Quavo’s vehicle to ensure that he did not get hit by the vehicle once they drove away, and § 87(2)(b) pushed Det. Bourne on his back with her forearm. Det. Bourne’s back remained turned to § 87(2)(b) and he told her to “relax” and “chill”. The crowd then pushed into Det. Bourne’s back again and § 87(2)(b) pushed into Det. Bourne’s back an additional two times. Det. Bourne turned to and faced § 87(2)(b) and extended both arms with open palms, pushing § 87(2)(b) backwards, somewhere on her upper body, near her chest. Det.

Bourne did not make any contact with § 87(2)(b) face and did not at any point punch § 87(2)(b) in the face during this incident.

Quavo's vehicle drove south on Ludlow Street and left the scene. Det. Bourne then walked back to his police vehicle, which was parked at the intersection of Ludlow Street and East Houston Street. § 87(2)(b) walked behind Det. Bourne and repeatedly stated that he punched her in the face, to which Det. Bourne told her that he did not. § 87(2)(b) continued following behind Det. Bourne and a crowd of approximately ten people formed with § 87(2)(b) and followed him. Individuals in the crowd called Det. Bourne things such as a "bitch," "pussy," and a "bitch nigga," leading Det. Bourne to feel unsafe. The crowd did not do or say anything else to Det. Bourne. § 87(2)(b) then requested Det. Bourne's name several times. Det. Bourne did not independently recall if § 87(2)(b) requested his shield number. Det. Bourne did not ever provide § 87(2)(b) with his name or shield number during this incident because due to being outnumbered by the crowd that followed him, and the names they were calling him, he felt unsafe. Det. Bourne then told § 87(2)(b) that he could arrest her. § 87(2)(b) could have been arrested for assault, due to her pushing Det. Bourne earlier. Det. Bourne reached and entered the driver seat of his police vehicle and § 87(2)(b) followed him, stood by the open driver door, and held the door with her hand, preventing Det. Bourne from closing the door. Det. Bourne could have arrested § 87(2)(b) for Obstruction of Governmental Administration for her preventing him from closing his police vehicle door, but he was ultimately able to close the door and leave the scene.

Det. Bourne was presented with the Instagram Live personal cellphone video recorded by § 87(2)(b) and from 00:10 to 00:12, Det. Bourne stated that that was the third push by § 87(2)(b) right arm, which made contact with his left arm. Det. Bourne stated that at 00:12, § 87(2)(b) right arm remains making physical contact with his left arm, and the physical motion with his right arm that ensues at 00:12, was the open-palm push to § 87(2)(b) upper body described earlier (Board Review 11).

The investigation obtained § 87(2)(b) § 87(2)(b) After Visit Summary from § 87(2)(b) diagnosing § 87(2)(b) with having been assaulted with no evidence of abnormality or facial fracture (Board Review 12).

Doctor of Dental Medicine § 87(2)(b) § 87(2)(b) provided a letter to the investigation on § 87(2)(b) detailing § 87(2)(b) oral injuries revealed during § 87(2)(b) visit. In the letter, § 87(2)(b) states that § 87(2)(b) presented with visible oral swelling and extreme pain. § 87(2)(b) showed no sign of fracture, however the area was traumatized (Board Review 13).

§ 87(2)(b) provided the investigation with two personal cellphone photographs capturing the laceration to her lip sustained as a result of the physical force used by Det. Bourne during this incident (Board Review 14).

According to NYPD Patrol Guide Procedure 221-01, force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances (Board Review 15).

According to NYPD Administrative Guide 304-11, uniformed members of service must courteously state their rank, name, shield number, and command, or otherwise provide them to anyone who requests it (Board Review 16).

According to NY Penal Law § 195.05, a person is guilty of obstructing governmental

administration when they intentionally obstruct, impair, or prevent the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force or interference, or by means of any independently unlawful act (Board Review 26).

According to NY Penal Law § 120.00, a person is guilty of assault in the third degree when with intent to cause physical injury to another person, causes such injury to such person or recklessly causes physical injury to another person, or with criminal negligence, causes physical injury to another person by means of a deadly or dangerous instrument (Board Review 27).

§ 87(2)(g) [REDACTED]
[REDACTED] It is unclear from the Instagram Live personal cellphone video recorded by § 87(2)(b) whether § 87(2)(b) right arm is making any physical contact with Det. Bourne prior to the alleged punch, § 87(2)(g) [REDACTED]

[REDACTED] the video reveals that Det. Bourne's right fist is closed when he delivers what he described as a push to § 87(2)(b) upper body. § 87(2)(g) [REDACTED]

[REDACTED] The letter obtained by the investigation from § 87(2)(b) Doctor of Dental Medicine, § 87(2)(g) documenting swelling and traumatization to § 87(2)(b) mouth, § 87(2)(g) the personal cellphone photographic evidence of § 87(2)(b) injuries, in which a small laceration and visible redness is seen on § 87(2)(b) lower-lip.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

It is undisputed that § 87(2)(b) asked Det. Bourne for his name, shield number and "information," which she described as her wanting his name and shield number, several times during this incident. § 87(2)(g) [REDACTED]
[REDACTED] § 87(2)(b) personal cellphone video captured the entirety of § 87(2)(b) and Det. Bourne's walk from in front of Sweet Chick to Det. Bourne's police vehicle, § 87(2)(g) [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(b) personal cellphone video revealed that at the time Det. Bourne threatened to arrest

and “information.” § 87(2)(g)

§ 87(2)(g)

114

Bourne and § 87(2)(b)

§ 87(2)(b) at 00:30, the two are separated and § 87(2)(b) is handcuffed (Board Review 05).

investigation. The investigation was therefore unable to obtain a statement from § 87(2)(b)

Det. Lopez was interviewed at the CCRB on February 21, 2024. On the night of September 9, 2023, he and Det. Graves worked as investigators at a pop-up concert by the hip-hop artist Quavo, at the Sweet Chick restaurant, located at 178 Ludlow Street in Manhattan. Det. Lopez's and Det. Graves' duties included working with the performing artist and their security team and organizing background logistics with the hosting venue.

Det. Lopez and Det. Graves stood at the intersection of Ludlow Street and East Houston with approximately 60 uniformed police officers, waiting for Quavo to arrive for the performance. The civilian crowd continually grew, far outnumbering the officers on scene, and the crowd acted disorderly, smoking marijuana and drinking alcohol in the streets and acting generally non-compliant. A 7th Precinct Captain, whom Det. Lopez did not know, made the decision to barricade the north end of Ludlow Street, blocking all pedestrian and vehicular traffic on Ludlow Street until Quavo arrived on scene. The barricades stretched all the way across Ludlow Street, from the east sidewalk to the west sidewalk.

At approximately 10:26 PM, Det. Lopez observed a 7th Precinct Community Affairs officer, whom he had spoken to earlier that night, but whose name he did not know, speaking to § 87(2)(b) beyond the barriers on Ludlow Street. Det. Lopez and Det. Graves approached the Community Affairs officer, who was telling § 87(2)(b) that he was in a restricted area and needed to be on the other side of the metal barriers, to which § 87(2)(b) refused. Det. Lopez told § 87(2)(b) that he needed to move to the other side of the barriers and that he would be allowed to re-enter at a later time once the barriers were opened up. § 87(2)(b) continued to refuse and told Det. Lopez that officers would have to move him. Several uniformed officers approached § 87(2)(b) and escorted him past Det. Lopez and Det. Graves and out of the restricted area, on the other side of the barriers.

Det. Graves turned and faced Det. Lopez and § 87(2)(b) approached Det. Graves within an arm's length away from behind. § 87(2)(b) pulled his right arm back with his closed fist next to his right shoulder and his left arm extended in front of him and took one step back before flinching his right arm forward like he was going to hit Det. Graves. As § 87(2)(b) did this, Det. Graves turned around to face § 87(2)(b). Det. Graves stated, "I wish you would. I wish you would," and the two began to argue. Based on the physical action § 87(2)(b) took prior to Det. Graves turning around and his close proximity to him, Det. Lopez believed that § 87(2)(b) was a physical threat to Det. Graves, and Det. Lopez took several steps toward § 87(2)(b) and pushed him in the upper body with one or both hands away from Det. Graves. The push caused § 87(2)(b) to take several steps backwards and he immediately took several steps forward towards Det. Lopez. Det. Lopez extended his arms to push § 87(2)(b) away from him again and as he did, § 87(2)(b) grabbed Det. Lopez's NYPD wind-breaker in the chest region with both hands. § 87(2)(b) held onto Det. Lopez's wind-breaker with both hands and Det. Lopez repeatedly told § 87(2)(b) to let go of him, which § 87(2)(b) did not. § 87(2)(b) struck Det. Lopez in the left shoulder with his right hand with what Det. Lopez described as a "little jab." After § 87(2)(b) refused multiple commands to let go and struck Det. Lopez, Det. Lopez believed that he needed to "fight off" § 87(2)(b). § 87(2)(b) was now considered under arrest for disorderly conduct, for putting hands on Det. Lopez.

Approximately fifteen seconds after § 87(2)(b) had initially grabbed Det. Lopez's wind-breaker with both hands, which he still held with both hands, Det. Lopez struck § 87(2)(b) in the head region with his closed right fist several times in immediate succession, using what he believed to be the appropriate amount of force based on the safety threat posed by § 87(2)(b). § 87(2)(b) did not strike Det. Lopez during this time and Det. Lopez could not estimate how many times he struck § 87(2)(b) in the head region. Det. Lopez struck § 87(2)(b) in the head because, based on the manner in which § 87(2)(b) held onto his wind-breaker, Det. Lopez could not strike him in any

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 18).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 19).
- Det. Bourne has been a member of service since July 8, 2015, and has been a subject in nine CCRB complaints and twenty-one allegations, none of which were substantiated. § 87(2)(g)
[REDACTED]
[REDACTED]
- Det. Lopez has been a member of service since October 7, 2015, and has been a subject in nine CCRB complaints and twenty-six allegations, none of which were substantiated. § 87(2)(g)
[REDACTED]
[REDACTED]

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming physical and psychological injuries as a result of the accost and assault by an NYPD police officer during this incident and is seeking a dollar amount to be later determined as redress. A 50H hearing was not listed as having been held or scheduled (Board Review 22).
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming physical and psychological injuries as a result of the wrongful conduct of NYPD officers involved in his September 9, 2023, arrest, and is seeking a dollar amount to be later determined as redress. A 50H hearing was not listed as having been held or scheduled (Board Review 23).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

- [REDACTED]
[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 8

Investigator:	<u>Nicholas Kuczek</u>	<u>Inv. Nicholas Kuczek</u>	<u>03/28/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Ethan De Angelo</u>	<u>IM Ethan De Angelo</u>	<u>03/28/2024</u>
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Signature

Print Title & Name

Date

Reviewer:

Signature

Print Title & Name

Date